

TELEWORKING TERMS AND CONDITIONS

I, _____, the undersigned, agree to perform my services as an Employee of SAGILITY under the following terms and conditions for any period I agree to be placed under a Teleworking/Work at Home (WAH) arrangement during the term of employment, and in consideration of the covenants stipulated herein, hereby voluntarily agree to perform, comply, and undertake the following:

I. TELEWORKING/WORK FROM HOME ARRANGEMENT

During the period under any WAH arrangement, the undersigned shall be permitted to perform his/her scope of work in a SAGILITY-approved WAH workspace located at a SAGILITY approved location outside of SAGILITY premises. During this period, the undersigned shall be granted remote access to Client/SAGILITY systems, networks, and online resources using SAGILITY-assigned desktops, laptops, devices, and network equipment strictly under the terms and conditions herein provided.

II. SCOPE OF TELEWORKING CONSENT AND UNDERTAKING

This document enumerates the obligations, warranties and representations binding the undersigned during any period during his/her employment wherein a WAH arrangement is in effect. The terms of this document shall be supplemental to all existing and applicable SAGILITY policies, rules and procedures including the Company's Employee Code of Conduct, and those relating to information confidentiality, data privacy and security.

SAGILITY maintains the right to amend and/or modify this document to conform to any future changes to, and developments in, the undersigned's scope of work under an applicable WAH arrangement and due to business necessity, subject to sufficient notice and, where applicable, consent.

III. OBLIGATIONS OF UNDERSIGNED

The undersigned agrees to comply and abide by his/her obligations under this Section during any period wherein a WAH arrangement is in effect. Specifically, the undersigned shall:

- i. Regularly log into his/her SAGILITY-assigned desktop, laptop, device and/or system in accordance with his/her documented scope of work/job/role and shift schedule as specified by his/her reporting manager or designee.
- ii. Strictly access/use his/her SAGILITY-assigned desktop, laptop, device and/or system only in relation to his/her documented scope of work/job/role, within the SAGILITY



approved WAH workspace, and in accordance with all existing and applicable SAGILITY policies, rules and procedures including the Company's Employee Code of Conduct and those relating to data privacy and security. As such, the undersigned shall not access/use any unauthorized websites, applications, software, equipment, or tools in relation to the aforementioned resources.

iii. Exercise utmost care, caution and due diligence in the use of his/her SAGILITY assigned desktop, laptop, device and/or system while the same are in his/her custody;

iv. Prohibit unauthorized persons, including immediate family members, relatives, friends, visitors and other non-SAGILITY personnel from entering the SAGILITY approved workspace and/or viewing/using/accessing his/her SAGILITY-assigned desktop, laptop, device and/or system, whether directly or indirectly and whether during work hours or otherwise.

v. Not use any mobile device or phone or any other electronic/magnetic/optical device with recording/photographic capabilities during his/her work shift, especially while he/she is accessing/using his/her SAGILITY-assigned desktop, laptop, device and/or system.

vi. Not bring his/her SAGILITY assigned desktop, laptop, device and/or system to any location other than the SAGILITY-approved WAH workspace;

vii. Not record, copy, reproduce, disclose, transmit, use or process, in any form, including digital recording or handwritten notation, any information, including client customer account information such as SSN, Credit Card Numbers, or personal data and/or confidential and proprietary information of SAGILITY for purposes outside of his/her documented scope of work/job/role during the entire course of the WAH arrangement.

viii. Protect his/her SAGILITY-assigned desktop, laptop, device and/or system and any information, records and/or materials under his/her access, control and/or custody by reason of his/her documented scope of work/job/role during the WAH arrangement from any unauthorized or accidental access, use, modification, destruction, or disclosure regardless of the media through which such access, control and/or custody is exercised, the locations thereof, or the systems and/or processes used in the performance thereof;

ix. Immediately notify his/her reporting manager/technical Single Point of Contact of any failure or malfunction of his/her SAGILITY-assigned desktop, laptop, device and/or system; any unauthorized access to such resources, information, records and/or materials under his/her access, control and/or custody by reason of his/her documented scope of work/job/role during the WAH arrangement; and any security incident affecting the confidentiality, availability and integrity of such information assets, including personal data;





x. Join the patching bridge on a monthly basis for IT to install required system updates to ensure security of the device. Major upgrades/ maintenance may be required to the machine which would require the undersigned to bring the computer to the office for system upgrade/ maintenance.

xi. Immediately return to the Company his/her SAGILITY-assigned desktop, laptop, device and/or system upon completion of the WAH arrangement and/or separation from the company.

xii. As agreed upon in **Section IV** of this document, he/she will take accountability and possible salary deduction in case the equipment is lost or damaged and is caused by his/her fault or negligence. Upon separation from Sagility, the employee is expected to return his/her assets on site. The severed employee has the option to personally drop-off the issued equipment back to the site or request for the company to pick-up the issued equipment, except for unserviceable areas. For those in unserviceable areas, the severed employee agrees to return or ship back the equipment at his/her own cost. Failure to return or surrender the equipment will cause Sagility to file the applicable criminal charges if the value of the equipment cannot be covered by the Final Pay of the severed employee.

xiii. Fully comply and abide by all obligations, warranties and representations contained herein as well as all WAH and other applicable policies, rules and procedures including the Company's Employee Code of Conduct, and those relating to information confidentiality, data privacy and security.

IV. EMPLOYEE'S CONFORMITY

- i. That in case the equipment issued to the undersigned is lost or damaged due to the fault or negligence of the employee, or upon failure to return said equipment after demand, he/she hereby authorizes and gives his/her consent to SAGILITY to deduct from his/her salary the value of the lost equipment or the value of the damage caused.
- ii. That upon his/her separation from SAGILITY, the undersigned authorizes and consents to deductions on his/her final pay the value of the unreturned equipment.

V. WARRANTIES AND REPRESENTATIONS

The undersigned warrants and represents that:

- i. He/she is aware that his/her SAGILITY assigned desktop, laptop, device, system and/or SAGILITY-approved WAH workspace are subject to monitoring. In the event of any deviation from or breach to the terms of this document and all





WAH and other applicable policies, rules and procedures, for which he/she may be subject to disciplinary action.

- ii. He/she shall permit any duly authorized SAGILITY representative to physically visit/inspect the SAGILITY-approved WAH workspace anytime during his/her scheduled work hours to ensure the proper performance of his/her work under the WAH arrangement, including but not limited to the maintenance of his/her SAGILITY assigned desktop, laptop, device and/or system or the audit of his/her work area. Entry into the WAH premises includes physical access to the said area or through the use of webcam facilities, Closed Circuit Television (CCTV) Cameras and use of virtual/remote desktop viewing/monitoring by authorized SAGILITY personnel.
- iii. In the implementation of the above remote monitoring facilities, he/she fully understands and agrees to the following:
 - 1. SAGILITY's use of an Information Security/Data Protection Tool which will allow the Company to have remote and real time access to SAGILITY-assigned desktops, laptops, devices and/or systems.
 - 2. This Information Security/Data Protection Tool has capabilities for audio and video monitoring and recording of the undersigned's services for the Company during working hours and at the SAGILITY approved WAH workspace, including:
 - a. Automated facial authentication, agent expression and attentiveness detection
 - b. Automated mobile camera detection
 - c. Automated detection of unauthorized persons during work hours and at the SAGILITY-approved WAH workspace
 - d. Automated detection of unauthorized obstruction to video monitoring devices
 - 3. The automated detection capabilities of the Information Security/Data Protection Tool are only to intended to capture imagery of possible/suspected violations to the terms of this document and to applicable SAGILITY policies, rules, and procedures, specifically those relating to information confidentiality, data protection and security. Any activity flagged by the Information Security/Data Protection Tool shall be cause for the Company to conduct further investigation subject to SAGILITY's disciplinary procedures and the requirements of due process. At no instance shall the Information Security/Data Protection Tool findings constitute an immediate attribution of fault or liability. Likewise, employees



subject to any investigation hereunder shall be provided access to any captured imagery and be given an opportunity to dispute the same.

4. As a result of its functions, the Information Security/Data Protection Tool may inadvertently capture the imagery of the undersigned's family members, friends or visitors, should they be allowed to enter the SAGILITY-approved WAH workspace in violation of the terms of this document. While SAGILITY shall use its best efforts to ensure that the said tool is implemented only to promote security and safety of Information and data accessed by the undersigned and for the purposes of evaluation of the latter's productivity as an employee, he/she acknowledges his/her responsibility to:
 - a. Inform his/her family members, friends, or visitors of the restrictions from and implications of entering into the SAGILITY approved WAH workspace, including the possible capture of their image and likeness by the Information Security/Data Protection Tool and the purpose for the processing thereof; and
 - b. Ensure that no unauthorized person enters the SAGILITY-approved WAH workspace.
 5. SAGILITY shall ensure that any personal data captured by the Information Security/Data Protection Tool is only retained for a limited period or until the lawful and legitimate purpose of the processing, as explained in this document, is achieved.
 6. The undersigned has received a demonstration of the functionality of the Information Security/Data Protection Tool with remote audio and video monitoring capabilities in real time and understands the applications and functionalities covered by this Tool.
- iv. He/she agrees to comply/abide by the terms contained hereof during any period during his/her employment wherein a WAH arrangement is in effect.





v. By signing this consent form, the undersigned hereby declares, consents to & confirms that:

1. He/she has read, understood, and agreed to abide by and be bound to the terms, warranties and representations contained in this document as well as the applicable SAGILITY policies, rules and procedures.
2. He/she is aware that any violations to the SAGILITY policies would result in disciplinary action that range up to termination of employment and/or legal action.

✓ **Full Name of the employee:** _____

✓ **Employee Number:** _____

✓ **Contact Number:** _____

✓ **Account:** _____

✓ **Signature:** _____

✓ **Date:** _____

ACCEPTABLE USE AND INFORMATION CONFIDENTIALITY AGREEMENT

I. Policy Scope

The use of Sagility Philippines B.V (“BETAINE/Company”) information and communications technology (“ICT”) and computing facilities, systems and applications including those used in the processing of personal data (please see enumeration below) and other proprietary information assets is a privilege granted only to authorized and responsible users within the Company. Responsible use implies ethical conduct, diligent efforts to protect such resources, and faithful compliance with the law and to the Company’s declared and legitimate purpose/s of such use.

This Acceptable Use and Information Confidentiality Agreement is intended to protect, not only the Company, its employees and partners, but also data subjects and individuals outside of the Company whose personal data may be impacted by any damaging action contrary to the responsibilities and obligations set forth herein. It makes clear the consequences for anyone found guilty of mishandling or interfering with the Company’s computer-based facilities, systems and applications and/or misusing its information resources contrary to this agreement and its provisions on confidentiality.

II. General Obligations

Sagility Philippines B.V proprietary information and personal data under its control and custody stored on electronic and computing devices whether owned or leased by Sagility Philippines B.V, the employee or a third party remain the sole property of Sagility Philippines B.V. You must ensure through legal or technical means that such proprietary information and personal data are protected at all times as outlined within this document and as required by the Information Security Policy.

1. Sagility Philippines B.V employees are expected to exercise good judgment in the reasonable use of such assets. Any uncertainty as to the standard of acceptable use of such assets must be resolved through proper consultation and documentation with the appropriate supervisor or manager.
2. All Sagility Philippines B.V ICT and computing facilities, systems and applications, especially those containing proprietary information and personal data under its control and custody must be used strictly for legitimate Sagility Philippines B.V business, only upon due authorization and to the extent access to such resources is necessary to the performance of Sagility Philippines B.V -mandated functions and duties.
3. Only approved technology products must be used. Users of Sagility Philippines B.V resources shall not install or use any software without approval and guidance from the Company.
4. Personal data under the control and custody of Sagility Philippines B.V shall not be transmitted over the Internet outside of approved channels and unless properly encrypted according to the Company’s standards. Use of personal or free e-mail for such transmissions are absolutely prohibited.

5. Non-company issued mobile and computing devices are prohibited from connecting to any Sagility Philippines B.V -controlled network or web application and/or from accessing personal data under its control and custody except where such devices have been approved by the Company and are deemed fully compliant with its data security standards.
6. Sagility Philippines B.V employees are responsible for reporting any accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, proprietary information and personal data under the Company's control and custody.

III. Unacceptable Use

The following are the activities deemed illegal and would subject the responsible employee, upon due notice and investigation, to suspension, immediate termination or civil/criminal liability:

1. Willful introduction of computer viruses, worms, Trojan horses and similar malicious software into Sagility Philippines B.V systems;
2. Attempted vandalism of equipment or software such as physical destruction of computer equipment, destruction of cabling and network infrastructures, and destruction and alteration of system files and applications. This also includes denial-of-service (DoS) and similar attacks perpetrated by end-users;
3. Attempts to gain unauthorized access and privileges by defeating network security (hacking), bypassing proxy servers, stealing/sharing network passwords, accessing classified system folders and documents, and exploiting system weaknesses and/or vulnerabilities;
4. Accessing proprietary information and/or personal data under the control and custody of Sagility Philippines B.V, a server or an account for any purpose other than conducting business;
5. Data espionage through the use of programs such as network sniffers, key loggers, backdoor Trojans, and the like;
6. Unauthorized disclosure, malicious and/or negligent handling of access controls such as account passwords and/or encryption keys;
7. Breach of the intellectual property laws through the use of unlicensed software (software not approved by the appropriate office) and the distribution and use of illegally obtained MP3s, movies and such other media content; and
8. Unauthorized use of all Intellectual Property Rights work done by employees as part of their normal or other duties as owned by the Company. This includes applications such as systems design, program codes, etc. Also, taking proprietary information when the employee disengages from the Company can result in an infringement of the proprietary/copyright law which could result to a criminal liability even if the employee is no longer with the Company.



Any failure to report IT-related security breaches will also be subject to disciplinary actions which may or may not be progressive in nature. An IT-related security breach can be regarded as a series of illegal activities whose ultimate result is damage to or loss of data from an information system.

IV. Consequences of misuse

Because of its potentially serious consequences to the efficiency, stability and security of Sagility Philippines B.V ICT and computing facilities, applications and/or systems, and to individual data subjects, any act of data espionage, computer misuse, system penetration and hacking, and failure to report IT related security breaches will be generally regarded as gross acts of misconduct. Sagility Philippines B.V reserves the right to take necessary and appropriate legal actions which includes suspension or termination of the employee in the case of gross infringement of the present IT Security Guidelines. Violators will immediately be reported to HR whereby the appropriate sanctions will be carried out.

Where hacking is a criminal offence, offenders may also be liable to criminal prosecution. In addition, violation of copyright and intellectual privacy laws can give rise to civil and criminal liability on the part of the infringer as well.

V. Personal Undertaking on Confidentiality of Sagility Philippines B.V Proprietary Information and Personal Data under its Control and Custody

I recognize that Sagility Philippines B.V, its related or affiliated entities and their predecessors or successors, are engaged in, among others, the sale of call center, retail management and information and related services to customers worldwide, and that this business necessitates a continuous program of research, marketing and customer solicitation and contact, which may include the collection and processing personal data.

I understand that my association and/or employment with the Company creates in me a duty of trust and confidentiality to the Company, to its Affiliates, and to data subjects with respect to any (a) information related, applicable or useful to the business of the Company; (b) information resulting from tasks assigned to me by the Company; (c) information regarding the particular needs and desires of any of the Company's customers, which may be made known to me by the Company, or by any client or customer of the Company, or learned by me during the period of my association and/or employment; or (d) personal data collected from such data subjects pursuant to declared and legitimate purposes of the Company.

As part of the consideration for my association and/or employment with the Company, and the compensation to be received by me from the Company from time to time, I hereby agree as follows:

1. For purposes of this Agreement, "Proprietary Information" shall mean information generally unavailable to the public that has been created, discovered, developed or otherwise become known to the Company, which information has economic value or potential economic value to the business in which the Company is or will be engaged in. Proprietary Information shall include, but not be limited to, the Company's: trade secrets; strategic plan; marketing and sales reports and forecasts; financial information (such as annual sales, expenses, and gross and net profits); customers, broker and supplier lists and any modifications or enhancements of the same; financial terms or



arrangements with customers, brokers or suppliers; training materials; processes; data; know-how; business forms; improvements; discoveries; developments; designs; techniques; programs and information (whether or not in writing), which have actual or potential economic value to the Company. Without limiting the foregoing, Proprietary Information shall specifically include:

- Potential and actual customers or customer lists;
 - Research about potential or actual customers or customer lists; and
 - Any duplication, reproduction or excerpt in any form whatsoever, of the information contained in such customer research or customer lists.
 - Scope of services delivered to customers
2. For purposes of this Agreement, “Personal Data” shall mean any information whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual or any information:
- a. About an individual’s race, ethnic origin, marital status, age, color, and religious, philosophical or political affiliations;
 - b. About an individual’s health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings;
 - c. Issued by government agencies peculiar to an individual which includes, but not limited to, social security numbers, previous or current health records, licenses or its denials, suspension or revocation, and tax returns; and
 - d. Specifically established by an executive order or an act of Congress to be kept classified.
3. At all times, during my association and/or employment with the Company, and after the termination of such association and/or employment, whether the termination is voluntary or involuntary, for any reason or no reason, or by disability, I will keep in strictest confidence and trust all Proprietary Information and Personal Data under Sagility Philippines B.V.’s control and custody; and I will not disclose, use, or induce or assist in the use or disclosure of any such Proprietary Information or Company rights pertaining to such Proprietary Information, including anything related to the same or any Personal Data under the Company’s control and/or custody, without the prior express written consent of the Company.
4. I further agree that at any time after the termination of my association and/or employment with the Company, I will not use the Proprietary Information or Personal Data to contact any of Sagility Philippines B.V.’s customers, clients, or prospects.
5. During and subsequent to the period of my association and/or employment, I agree that, without the prior express written consent of the Company, I will not:
- Disclose to others, use, copy or permit to be copied any Proprietary Information or Personal Data;



- Remove Proprietary Information or Personal Data from Company premises except in the ordinary course of conducting business for the Company;
 - Assert any claim of ownership or other property interest in any Proprietary Information or Personal Data; or
 - Divulge to any person any information, including Personal Data, received during the course of my association and/or employment concerning the business of the Company and its financial condition.
6. Upon termination of my association and/or employment with the Company, I will:
- Immediately deliver to the Company any Proprietary Information or Personal Data, including all reproductions in any format, in my possession or control;
 - Permit the Company to inspect any materials to be removed by me from its premises; and
 - Refrain from any further use whatsoever of such access, security credentials and/or such other privilege that I may have received and/or have been granted by the Company on account of my association and/or employment therewith.
7. During my association and/or employment with the Company, and for a period of six (6) months thereafter, I will not, directly or indirectly, either alone or in concert with others:
- Solicit or attempt to solicit, directly or indirectly, any of the Company's customers, clients, or prospects with respect to call center services or any other line of business in which the Company and the Affiliates were engaged in at the time of termination; or
 - Recruit or attempt to recruit, directly or indirectly, any employee or personnel of the Company and the Affiliates for association and/or employment with any other Company which does business in call center services or any other line of business in which the Company and the Affiliates were engaged in at the time of termination.
8. In the event of the termination of my association and/or employment, I acknowledge that, under certain circumstances, employment with or activities on behalf of a competitor of the Company would inherently call upon me to reveal Proprietary Information, to which I had access or learned during my association and/or employment, in order to fulfill my duties or obligations to the competitor. Thus, during the 6-month period following termination of my association and/or employment with the Company, I will not accept any such employment or engage in any such activities which would require me to use or disclose Proprietary Information.
9. I represent that I have not entered into, and I agree that I will not enter into, any agreement, either written or oral, in conflict with the terms of this Agreement. I also understand that in my service to the Company, I am not to breach any obligation of confidentiality that I have to former employers, and I have fulfilled all such obligations during my association and/or employment.
10. I acknowledge that irreparable injury will result to the Company and the Affiliates from my violation or continued violation of the terms of this Agreement, and I expressly agree



that the Company and the Affiliates shall be entitled, in addition to damages and any other remedies provided by law, to an injunction or other equitable remedy respecting such violation or continued violation by me.

11. I acknowledge that in the event of my violation of this agreement, I may be subject to legal, civil, criminal and/or administrative action; and understand that I may be held liable for costs, damages and/or fees.
12. If any provision of this Agreement is held to be unenforceable for any reason, that provision shall be ineffective only to the extent of such unenforceability and shall not invalidate or otherwise render ineffective any other provision of this Agreement.
13. No implied waiver by the Company or the Affiliates of any provision in this Agreement shall arise in the absence of a waiver in writing signed by the Company or the Affiliates, and no waiver by the Company or the Affiliates with respect to a specific circumstance, event or occasion shall be construed as a continuing waiver as to similar circumstances, events or occasions.
14. Any violation of the provisions and/or covenants stipulated in this Agreement shall entitle the Company to claim for liquidated damages in the amount of One Hundred Thousand Pesos (Php100,000.00) or actual and/or compensatory damages that may be incurred by the Company.
15. If any provision of this Agreement is unenforceable or invalid under any applicable law or is so held by applicable court decision, such unenforceability or invalidity shall not render this Contract unenforceable or invalid as a whole. In such event, such provision shall be changed and interpreted so as to best accomplish the objectives of the parties within the limits of applicable law or court decisions.
16. This Agreement contains the sole and entire agreement and understanding between the Company and myself with respect to its subject matter, and supersedes and replaces any prior agreement to the extent any such agreement is inconsistent with the terms of this Agreement.
17. This Agreement can be amended, modified, released or changed, whole or in part, only by a written agreement signed by the Company and myself.
18. This Agreement shall be binding upon me, my heirs, executors, assigns and administrators, and shall inure to the benefit of the Company and the Affiliates, and their successors or assigns.

I confirm that I have read and fully understood the above-mentioned policies and guidelines. I am fully aware that illegal use of IT facilities and applications will result to a disciplinary action (including termination) and/or civil/criminal liability.

- ✓ **Full Name of the employee:** _____
- ✓ **Signature:** _____
- ✓ **Date:** _____